

MASTER SERVICES AGREEMENT

Document Reference: SG-MSA-2026-NIMBUS-09

Effective Date: January 1, 2026

This Master Services Agreement (the “**Agreement**”) is entered into as of the Effective Date set forth above, by and between:

Société Générale International S.A., a société anonyme organized and existing under the laws of France, having its registered office at 29 boulevard Haussmann, 75009 Paris, France (hereinafter referred to as the “**Client**”),

and

NimbusPay LLC, a limited liability company organized and existing under the laws of the State of Delaware, United States of America, having its principal place of business at [Provider Address] (hereinafter referred to as the “**Provider**”).

(Each a “Party” and collectively, the “Parties”).

WHEREAS, Client desires to engage Provider to perform certain services related to high-volume payment processing;

WHEREAS, Provider possesses the expertise, infrastructure, and capabilities necessary to provide such services;

WHEREAS, the Parties wish to set forth the terms and conditions under which Provider will provide the Services to Client;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings ascribed to them below. Any capitalized terms used but not defined herein shall have the meanings given to them in the applicable Statement of Work or as otherwise defined in this Agreement.

1.1 Customer Data shall mean all data, information, or materials provided by Client to Provider or generated by Provider in the course of performing the Services, including but not limited to cardholder data, transaction records, account information, personally identifiable information, and any derivatives or aggregations thereof. Customer Data shall be deemed Confidential Information of Client.

1.2 Proprietary Information shall mean any and all non-public information disclosed by one Party (the “Disclosing Party”) to the other Party (the “Receiving Party”), whether orally, in writing, or by any other means, that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be understood to be confidential. Proprietary Information includes, without limitation, trade secrets, know-how, business plans, technical data, customer lists, pricing information, software code, algorithms, and any other intellectual property or sensitive commercial information.

1.3 Core Production Infrastructure shall mean Client’s live operational environment, including but not limited to primary transactional databases, payment switches, card

management systems, secure network segments, and all associated hardware, software, and network components that process, store, or transmit production financial transactions and Customer Data in real-time.

Additional defined terms shall have the meanings set forth in the context in which they first appear.

2. SCOPE OF WORK

- 2.1** Provider shall perform the Services as described in one or more Statements of Work executed by the Parties, which shall be incorporated herein by reference. The Services shall include, without limitation, high-volume card processing routines, authorization, clearing, settlement, and related payment facilitation activities.
- 2.2** Provider shall directly interface with Client's live transactional databases and Core Production Infrastructure in accordance with the security protocols, technical specifications, and integration requirements set forth in the applicable Statement of Work and any security addendum attached hereto. All such interfaces shall be conducted through secure, encrypted channels using industry-standard protocols.
- 2.3** Provider shall maintain all necessary licenses, certifications, and compliance with applicable laws, regulations, and card scheme rules (including but not limited to PCI DSS) at all times during the Term. Provider shall be responsible for the performance of its subcontractors, if any, to the same extent as for its own performance.

3. FEES & FINANCIAL TERMS

- 3.1 Fees.** In consideration for the Services provided by Provider, Client shall pay Provider the fees set forth in the applicable Statement of Work (the "Fees"). Fees shall be calculated based on transaction volume, per-transaction rates, monthly minimums, and any applicable fixed or variable charges as mutually agreed.
- 3.2 Billing Cycles.** Provider shall invoice Client on a monthly basis, in arrears, for Services rendered during the preceding calendar month. Each invoice shall include detailed transaction logs, volume breakdowns, and supporting documentation sufficient for Client's verification.
- 3.3 Payment Schedules.** Client shall remit payment of each undisputed invoice within thirty (30) days of receipt. Payments shall be made in United States Dollars via wire transfer to the account designated by Provider. Late payments shall accrue interest at the rate of 1.5% per month or the maximum rate permitted by law, whichever is less.
- 3.4 Taxes.** Fees are exclusive of all applicable taxes, duties, and governmental charges. Client shall be responsible for payment of all such taxes, excluding taxes based on Provider's net income. Provider shall provide Client with valid tax invoices as required.

4. INDEMNIFICATION

- 4.1 Mutual Indemnification.** Each Party shall indemnify, defend, and hold harmless the other Party and its affiliates, officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to (i) any breach of this Agreement by the indemnifying Party, or (ii) the gross negligence or willful misconduct of the indemnifying Party.

4.2 Liability Cap. Subject to the exceptions set forth in Section 4.3, the total aggregate liability of Provider to Client under this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed Five Million United States Dollars (USD \$5,000,000.00).

4.3 Uncapped Liabilities. Notwithstanding the foregoing, the liability cap set forth in Section 4.2 shall not apply to: (i) Provider's obligations under indemnification for gross negligence or willful misconduct; (ii) any breach of confidentiality obligations with respect to Customer Data or Proprietary Information; (iii) willful data security failures, including but not limited to breaches of PCI DSS, unauthorized access to Core Production Infrastructure, or compromise of Customer Data; or (iv) any liability that cannot be limited by applicable law. In such cases, liability shall be uncapped.

5. TERM & TERMINATION

5.1 Term. This Agreement shall commence on the Effective Date and shall continue in full force and effect for a period of twenty-four (24) months thereafter (the "Initial Term"), unless earlier terminated in accordance with this Section.

5.2 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice to the other Party if: (i) the other Party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days after receipt of notice thereof; or (ii) the other Party becomes insolvent, files for bankruptcy, or ceases to conduct business in the ordinary course.

5.3 Security Certification Termination Right. Client shall have the right to terminate this Agreement immediately for cause, without cure period, if Provider fails to maintain valid and current industry security certifications, including but not limited to PCI DSS Level 1 certification, ISO 27001, or any other certification required by applicable card schemes or regulatory authorities. Upon such termination, Provider shall promptly return or destroy all Customer Data and provide a certification of compliance signed by an officer of Provider.

5.4 Effects of Termination. Upon termination or expiration: (i) all rights and licenses granted hereunder shall immediately cease; (ii) Provider shall cease all use of and return or destroy Customer Data and Proprietary Information; (iii) Client shall pay all outstanding undisputed Fees for Services rendered prior to the effective date of termination; and (iv) the provisions of Sections 1, 4, 6, 7, and any surviving obligations shall survive termination.

6. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by the laws of the State of New York, without regard to conflict of laws principles. Any disputes arising under this Agreement shall be resolved exclusively in the state or federal courts located in New York County, New York, and the Parties hereby consent to the personal jurisdiction and venue thereof.

7. CONFIDENTIALITY

Each Party agrees to maintain the confidentiality of the other Party's Proprietary Information and Customer Data using at least the same degree of care as it uses for its own similar information, but in no event less than reasonable care. This obligation shall survive for five (5) years following termination of this Agreement.

8. MISCELLANEOUS

- 8.1** This Agreement, together with any Statements of Work, constitutes the entire agreement between the Parties and supersedes all prior understandings.
- 8.2** No amendment shall be effective unless in writing and signed by both Parties.
- 8.3** If any provision is held invalid, the remainder shall continue in full force.
- 8.4** Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger or acquisition of substantially all assets.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

For Société Générale International For NimbusPay LLC (Provider):
S.A. (Client):

Name:
Title:
Date:

Name:
Title:
Date: